

**OPTIONS 7 PRICING SCHEDULE****Section 1 General Provisions**

Changes have been approved that are not yet operative. For more information see the [attached document](#).

The Nasdaq Options Market Participants may be subject to the Charges for Membership, Services and Equipment in the Equity 7 Series, General 8, Sections 1-2, as well as the fees in this Options 7.

(a) For purposes of assessing fees and paying rebates, the following references should serve as guidance.

The term **"Broker-Dealer"** or ("B") applies to any transaction which is not subject to any of the other transaction fees applicable within a particular category.

The term **"Common Ownership"** shall mean Participants under 75% common ownership or control. Common Ownership shall apply to all pricing in Options 7, Section 2 for which a volume threshold or volume percentage is required to obtain the pricing.

The term **"Customer"** or ("C") applies to any transaction that is identified by a Participant for clearing in the Customer range at The Options Clearing Corporation ("OCC") which is not for the account of broker or dealer or for the account of a "Professional" (as that term is defined in Options 1, Section 1(a)(48)).

An **"Exposed Order"** is an order that is broadcast via an order exposure alert as described within Options 5, Section 4 (Order Routing). Unless otherwise noted in Options 7, Section 2 pricing, Exposed Orders will be assessed the applicable "Taker" Fee and any order or quote that executes against an Exposed Order during a Route Timer will be paid/assessed the applicable "Maker" Rebate/Fee.

The term **"Firm"** or ("F") applies to any transaction that is identified by a Participant for clearing in the Firm range at OCC.

The term **"Joint Back Office"** or "JBO" applies to any transaction that is identified by a Participant for clearing in the Firm range at OCC and is identified with an origin code as a JBO. A JBO will be priced the same as a Broker-Dealer as of September 1, 2014. A JBO participant is a Participant that maintains a JBO arrangement with a clearing broker-dealer ("JBO Broker") subject to the requirements of Regulation T Section 220.7 of the Federal Reserve System as further discussed in Options 6C, Section 1.

The term **"Lead Market Maker"** or ("LMM") applies to a registered NOM Market Maker that is approved pursuant to Options 2, Section 3 to be the LMM in an options class (options classes).

The term **"NOM Market Maker"** or ("M") is a Participant that has registered as a Market Maker on NOM pursuant to Options 2, Section 1, and must also remain in good standing pursuant to Options 2, Section 9. In order to receive NOM Market Maker pricing in all securities, the Participant must be registered as a NOM Market Maker in at least one security.

The term **"Non-Customer"** applies to transactions for the accounts of NOM Market Makers, Non-NOM Market Makers, Firms, Professionals, Broker-Dealers and JBOs.

The term **"Non-NOM Market Maker"** or ("O") is a registered market maker on another options exchange that is not a NOM Market Maker. A Non-NOM Market Maker must append the proper Non-NOM Market Maker designation to orders routed to NOM.

The term **"Professional"** or ("P") means any person or entity that (i) is not a broker or dealer in securities, and (ii) places more than 390 orders in listed options per day on average during a calendar month for its own beneficial account(s) pursuant to Options 1, Section 1(a)(48). All Professional orders shall be appropriately marked by Participants.

**(b) For Purposes of Common Ownership Aggregation of Activity of Affiliated Members and Member Organizations**

(1) For purposes of applying any options transaction fee or rebate where the fee assessed, or rebate provided by NOM depends upon the volume of an Options Participant's activity, an Options Participant may request that NOM aggregate its activity with the activity of its affiliates.

(A) An Options Participant requesting aggregation of affiliate activity shall be required to certify to NOM the affiliate status of entities whose activity it seeks to aggregate prior to receiving approval for aggregation, and shall be required to inform NOM immediately of any event that causes an entity to cease to be an affiliate. NOM shall review available information regarding the entities, and reserves the right to request additional information to verify the affiliate status of an entity. NOM shall approve a request unless it determines that the certification is not accurate.

(B) If two or more Options Participants become affiliated on or prior to the sixteenth day of a month, and submit the required request for aggregation on or prior to the twenty-second day of the month, an approval of the request by NOM shall be deemed to be effective as of the first day of that month. If two or more Options Participants become affiliated after the sixteenth day of a month, or submit a request for aggregation after the twenty-second day of the month, an approval of the

request by NOM shall be deemed to be effective as of the first day of the next calendar month.

(2) For purposes of applying any options transaction fee or rebate where the fee assessed, or rebate provided, by NOM depends upon the volume of an Options Participant's activity, references to an entity (including references to a "Options Participant") shall be deemed to include the entity and its affiliates that have been approved for aggregation.

(3) For purposes of options pricing, the term "affiliate" of an Options Participant shall mean any Options Participant under 75% common ownership or control of that Options Participant.

The term "**Appointed MM**" is a NOM Market Maker who has been appointed by an Order Flow Provider ("OFP") for purposes of qualifying as an Affiliated Entity. An OFP is a Participant, other than a NOM Market Maker, that submits orders, as agent or principal, to the Exchange.

The term "**Appointed OFP**" is an OFP who has been appointed by a NOM Market Maker for purposes of qualifying as an Affiliated Entity.

The term "**Affiliated Entity**" is a relationship between an Appointed MM and an Appointed OFP for purposes of aggregating eligible volume for pricing in Options 7, Sections 2(1) and 2(6) for which a volume threshold or volume percentage is required to qualify for higher rebates or lower fees. NOM Market Makers and OFPs are required to send an email to the Exchange to appoint their counterpart at least 3 business days prior to the last day of the month to qualify for the next month. The Exchange will acknowledge receipt of the emails and specify the date the Affiliated Entity is eligible for applicable pricing in Options 7, Sections 2(1) and 2(6). Each Affiliated Entity relationship will commence on the 1st of a month and may not be terminated prior to the end of any month. An Affiliated Entity Relationship will automatically renew each month until or unless either party terminates earlier in writing by sending an email to the Exchange at least 3 business days prior to the last day of the month to terminate for the next month. Participants under Common Ownership may not qualify as a counterparty comprising an Affiliated Entity. Each Participant may qualify for only one (1) Affiliated Entity relationship at any given time.

(c) With respect to Options 7, Sections 2(1) and (2) the order that is received by the trading system first in time shall be considered an order adding liquidity and an order that trades against that order shall be considered an order removing liquidity.

**(d) For purposes of determining equity tier calculations under this section, any day that the market is not open for the entire trading day will be excluded from such calculation.**

(a) Removal of Days for Purposes of Options Pricing Tiers:

(i)

(A) Any day that the Exchange announces in advance that it will not be open for trading will be excluded from the options tier calculations set forth in its Pricing Schedule; and (B) any day with a scheduled early market close ("Scheduled Early Close") may be excluded from the options tier calculations only pursuant to paragraph (iii) below.

(ii) The Exchange may exclude the following days ("Unanticipated Events") from the options tier calculations only pursuant to paragraph (iii) below, specifically any day that: (A) the market is not open for the entire trading day, (B) the Exchange instructs Participants in writing to route their orders to other markets, (C) the Exchange is inaccessible to Participants during the 30-minute period before the opening of trade due to an Exchange system disruption, or (D) the Exchange's system experiences a disruption that lasts for more than 60 minutes during regular trading hours.

(iii) If a day is to be excluded as a result of paragraph (i)(B) or (ii) above, the Exchange will exclude the day from any Participant's monthly options tier calculations as follows:

(A) the Exchange may exclude from the ADV calculation any Scheduled Early Close or Unanticipated Event; and

(B) the Exchange may exclude from any other applicable options tier calculation provided for in its Pricing Schedule (together with (ii)(A), "Tier Calculations") any Scheduled Early Close or Unanticipated Event.

provided, in each case, that the Exchange will only remove the day for Participants that would have a lower Tier Calculation with the day included.

#### **(e) Collection of Exchange Fees and Other Claims-Nasdaq Options Market**

Each NOM member, and all applicants for registration, shall be required to provide a clearing account number for an account at the National Securities Clearing Corporation ("NSCC") for purposes of permitting the Exchange to debit any undisputed or final fees, fines, charges and/or other monetary sanctions or other monies due and owing to the Exchange or other charges related to General 2, Section 2. If a member disputes an invoice, the Exchange will not include the disputed amount in the debit if the member has disputed the amount in writing to the Exchange's designated staff by the 15th of the month, or the following business day if the 15th is not a business day, and the amount in dispute is at least \$10,000 or greater.

Adopted Jan. 6, 2012 (SR-NASDAQ-2012-006); amended Oct. 18, 2017 (SR-NASDAQ-2017-111); amended Nov. 19, 2018 (SR-NASDAQ-2018-098); amended Aug. 3, 2020 (SR-NASDAQ-2020-047); amended Aug. 13, 2020 (SR-NASDAQ-2020-052); amended Apr. 1, 2021 (SR-NASDAQ-2021-016); amended Apr. 9, 2021 (SR-NASDAQ-2021-019); amended Apr. 13, 2021 (SR-NASDAQ-2021-021); amended Nov. 30, 2021 (SR-NASDAQ-2021-095), operative Dec. 1, 2021; amended January 12, 2022 (SR-NASDAQ-2022-003), operative January 31, 2022; amended May 6, 2026 (SR-NASDAQ-2026-039), operative Jul. 27, 2026; amended Apr. 30, 2026 (SR-NASDAQ-2026-043), operative Jul. 27, 2026.

## **Section 2 Nasdaq Options Market - Fees and Rebates**

The following charges shall apply to the use of the order execution and routing services of The Nasdaq Options Market for all securities.

(1) Fees and Rebates for Execution of Contracts on The Nasdaq Options Market<sup>\*</sup>

**Rebates to Add Liquidity in Penny Symbols**

|                                       | <b>Tier 1</b> | <b>Tier 2</b>         | <b>Tier 3</b>         | <b>Tier 4</b>         | <b>Tier 5</b> | <b>Tier 6</b>         |
|---------------------------------------|---------------|-----------------------|-----------------------|-----------------------|---------------|-----------------------|
| <b>Customer</b> <sup>1,9,10</sup>     | (\$0.20)      | (\$0.25)              | (\$0.43)              | (\$0.44)              | (\$0.45)      | (\$0.48) <sup>7</sup> |
| <b>Professional</b> <sup>1,9,10</sup> | (\$0.20)      | (\$0.25)              | (\$0.43)              | (\$0.44)              | (\$0.45)      | (\$0.47)              |
| <b>Broker-Dealer</b>                  | (\$0.10)      | (\$0.10)              | (\$0.10)              | (\$0.10)              | (\$0.10)      | (\$0.10)              |
| <b>Firm</b>                           | (\$0.10)      | (\$0.10)              | (\$0.10)              | (\$0.10)              | (\$0.10)      | (\$0.10)              |
| <b>Non-NOM Market Maker</b>           | (\$0.10)      | (\$0.10)              | (\$0.10)              | (\$0.10)              | (\$0.10)      | (\$0.10)              |
| <b>NOM Market Maker</b> <sup>3</sup>  | (\$0.20)      | (\$0.25) <sup>4</sup> | (\$0.30) <sup>4</sup> | (\$0.32) <sup>4</sup> | (\$0.45)      | (\$0.47)              |

**Fees and Rebates to Add Liquidity in Non-Penny Symbols**

|                                        |                                 |
|----------------------------------------|---------------------------------|
| <b>Customer</b> <sup>9,10,12</sup>     | (\$0.80)                        |
| <b>Professional</b> <sup>9,10,12</sup> | (\$0.80)                        |
| <b>Broker-Dealer</b>                   | \$0.45                          |
| <b>Firm</b>                            | \$0.45                          |
| <b>Non-NOM Market Maker</b>            | \$0.45                          |
| <b>NOM Market Maker</b> <sup>5,6</sup> | \$0.35/\$0.00/(\$0.30)/(\$0.40) |

**Fees to Remove Liquidity in Penny and Non-Penny Symbols**

|                             | <b>Penny Symbols</b> | <b>Non-Penny Symbols</b> |
|-----------------------------|----------------------|--------------------------|
| <b>Customer</b>             | \$0.49               | \$0.85                   |
| <b>Professional</b>         | \$0.49               | \$0.85                   |
| <b>Broker-Dealer</b>        | \$0.50               | \$1.25                   |
| <b>Firm</b>                 | \$0.50               | \$1.25                   |
| <b>Non-NOM Market Maker</b> | \$0.50 <sup>2</sup>  | \$1.25                   |
| <b>NOM Market Maker</b>     | \$0.50 <sup>2</sup>  | \$1.25                   |

<sup>\*</sup>Orders executed in the Opening Cross per Options 3, Section 8 are not subject to Options 7, Section 2(1) pricing, instead, these orders are subject to the pricing within Options 7, Section 2(2).

<sup>1</sup> The Customer and Professional Rebate to Add Liquidity in Penny Symbols will be paid per the highest tier achieved below. To determine the applicable percentage of total industry customer equity and ETF option average daily volume, unless otherwise stated, the Participant's Penny Symbol and Non-Penny Symbol Customer and/or Professional volume that adds liquidity will be included.

**Monthly Volume**

|               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|---------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Tier 1</b> | Participant adds Customer, Professional, Firm, Non-NOM Market Maker and/or Broker-Dealer liquidity in Penny Symbols and/or Non-Penny Symbols of up to 0.10% of total industry customer equity and ETF option average daily volume ("ADV") contracts per day in a month                                                                                                                                                                                             |
| <b>Tier 2</b> | Participant adds Customer, Professional, Firm, Non-NOM Market Maker and/or Broker-Dealer liquidity in Penny Symbols and/or Non-Penny Symbols above 0.10% of total industry customer equity and ETF option ADV contracts per day in a month                                                                                                                                                                                                                         |
| <b>Tier 3</b> | Participant: (a) adds Customer, Professional, Firm, Non-NOM Market Maker and/or Broker-Dealer liquidity in Penny Symbols and/or Non-Penny Symbols above 0.20% of total industry customer equity and ETF option ADV contracts per day in a month; or (b) adds Customer and/or Professional liquidity in Penny Symbols and/or Non-Penny Symbols above 0.05% of total industry customer equity and ETF option ADV contracts per day in a month and qualifies for MARS |
| <b>Tier 4</b> | Participant adds Customer, Professional, Firm, Non-NOM Market Maker and/or Broker-Dealer                                                                                                                                                                                                                                                                                                                                                                           |

liquidity in Penny Symbols and/or Non-Penny Symbols above 0.30% of total industry customer equity and ETF option ADV contracts per day in a month

**Tier 5** Participant adds Customer, Professional, Firm, Non-NOM Market Maker and/or Broker-Dealer liquidity in Penny Symbols and/or Non-Penny Symbols above 0.40% of total industry customer equity and ETF option ADV contracts per day in a month

**Tier 6<sup>##</sup>** Participant adds Customer, Professional, Firm, Non-NOM Market Maker and/or Broker-Dealer liquidity in Penny Symbols and/or Non-Penny Symbols above 0.70% or more of total industry customer equity and ETF option ADV contracts per day in a month, or Participant : (1) adds Customer and/or Professional liquidity in Penny Symbols and/or Non-Penny Symbols of 0.10% or more of total industry customer equity and ETF option ADV contracts per day in a month, and (2) has added liquidity in all securities through one or more of its Nasdaq Market Center MPIDs that represent 1.00% or more of Consolidated Volume in a month or qualifies for MARS (defined below)

<sup>2</sup> Participants that add 1.10% of Customer, Professional, Firm, Broker-Dealer or Non-NOM Market Maker liquidity in Penny Symbols and/or Non-Penny Symbols of total industry customer equity and ETF option ADV contracts per day in a month will be subject to the following pricing applicable to executions: a \$0.48 per contract Penny Symbols Fee for Removing Liquidity when the Participant is (i) both the buyer and the seller or (ii) the Participant removes liquidity from another Participant under Common Ownership.

Participants that add 1.55% of Customer, Professional, Firm, Broker-Dealer or Non-NOM Market Maker liquidity in Penny Symbols and/or Non-Penny Symbols of total industry customer equity and ETF option ADV contracts per day in a month will be subject to the following pricing applicable to executions less than 10,000 contracts: a \$0.38 per contract Penny Symbols Fee for Removing Liquidity when the Participant is (i) both the buyer and seller or (ii) the Participant removes liquidity from another Participant under Common Ownership.

<sup>##</sup> Participants that add Customer, Professional, Firm, Non-NOM Market Maker and/or Broker-Dealer liquidity in Penny Symbols and/or Non-Penny Symbols above 0.80% or more of total industry customer equity and ETF option ADV contracts per day in a month, or Participants that (1) add Customer and/or Professional liquidity in Penny Symbols and/or Non-Penny Symbols of 0.20% or more of total industry adds customer equity and ETF option ADV contracts per day in a month, and (2) have added liquidity in all securities through one or more of its Nasdaq Market Center MPIDs that represent 1.00% or more of Consolidated Volume in a month or qualify for MARS (defined below) will receive an additional \$0.01 per contract rebate for Professional volume which adds liquidity in Penny Symbols only.

<sup>3</sup> The NOM Market Maker Rebates to Add Liquidity in Penny Symbols will be paid per the highest tier achieved below.

## Monthly Volume

**Tier 1** Participant adds NOM Market Maker liquidity in Penny Symbols and/or Non-Penny Symbols of up to 0.10% of total industry customer equity and ETF option average daily volume ("ADV") contracts per day in a month

**Tier 2** Participant adds NOM Market Maker liquidity in Penny Symbols and/or Non-Penny Symbols above 0.10% of total industry customer equity and ETF option ADV contracts per day in a month

**Tier 3** Participant: (a) adds NOM Market Maker liquidity in Penny Symbols and/or Non-Penny Symbols above 0.20% of total industry customer equity and ETF option ADV contracts per day in a month; or (b)(1) adds NOM Market Maker liquidity in Penny Symbols and/or Non-Penny Symbols above 0.15% of total industry customer equity and ETF option ADV contracts per day in a month, (2) transacts in all securities through one or more of its Nasdaq Market Center MPIDs that represent (i) 0.50% or more of Consolidated Volume ("CV") which adds liquidity in the same month on The Nasdaq Stock Market or (ii) 50 million shares or more ADV which adds liquidity in the same month on The Nasdaq Stock Market, and (3) executes 1.5 million shares or more ADV in the same month utilizing the M-ELO order type on The Nasdaq Stock Market

**Tier 4** Participant adds NOM Market Maker liquidity in Penny Symbols and/or Non-Penny Symbols of above 0.60% of total industry customer equity and ETF option ADV contracts per day in a month

**Tier 5** Participant: (a) adds NOM Market Maker liquidity in Penny Symbols and/or Non-Penny Symbols above 0.85% of total industry customer equity and ETF option ADV contracts per

day in a month; **or** (b) adds NOM Market Maker liquidity in Penny Symbols and/or Non-Penny Symbols of above 0.40% of total industry customer equity and ETF option ADV contracts per day in a month **and** transacts in all securities through one or more of its Nasdaq Market Center MPIDs that represent 0.40% or more of Consolidated Volume ("CV") which adds liquidity in the same month on The Nasdaq Stock Market

#### Tier 6

Participant: (a)(1) adds NOM Market Maker liquidity in Penny Symbols and/or Non-Penny Symbols above 0.95% of total industry customer equity and ETF option ADV contracts per day in a month, (2) executes Total Volume of 250,000 or more contracts per day in a month, of which 30,000 or more contracts per day in a month must be removing liquidity, and (3) adds Firm, Broker-Dealer and Non-NOM Market Maker liquidity in Non-Penny Symbols of 10,000 or more contracts per day in a month; **or** (b)(1) adds NOM Market Maker liquidity in Penny Symbols and/or Non-Penny Symbols above 1.40% of total industry customer equity and ETF option ADV contracts per day in a month, and (2) executes Total Volume of 250,000 or more contracts per day in a month, of which 15,000 or more contracts per day in a month must be removing liquidity

\* "Total Volume" shall be defined as Customer, Professional, Firm, Broker-Dealer, Non-NOM Market Maker and NOM Market Maker volume in Penny Symbols and/or Non-Penny Symbols which either adds or removes liquidity on NOM.

<sup>4</sup> Participants who achieve the NOM Market Maker Tier 2 Rebate to Add Liquidity and execute 1 million shares or more ADV in the same month utilizing the M-ELO order type on The Nasdaq Stock Market will receive a \$0.33 per contract to add liquidity in SPY, QQQ, and IWM, provided the Participant also transacts in all securities through one or more of its Nasdaq Market Center MPIDs that represent (i) 0.45% or more of Consolidated Volume ("CV") which adds liquidity in the same month on The Nasdaq Stock Market **or** (ii) 45 million shares or more ADV which adds liquidity in the same month on The Nasdaq Stock Market. Participants who achieve the NOM Market Maker Tier 3 or Tier 4 Rebate to Add Liquidity will receive \$0.39 per contract to add liquidity in the following symbols: SPY, QQQ, and IWM.

<sup>5</sup> The NOM Market Maker Fee for Adding Liquidity in Non-Penny Symbols will apply unless Participants meet the volume thresholds set forth in this note. Participants that add NOM Market Maker liquidity in Non-Penny Symbols of 0.025% to 0.035% of total industry customer equity and ETF option ADV contracts per day in a month will be assessed a \$0.00 per contract Non-Penny Options Fee for Adding Liquidity in that month. Participants that add NOM Market Maker liquidity in Non-Penny Symbols of above 0.035% to 0.075% of total industry customer equity and ETF option ADV contracts per day in a month will receive a Non-Penny Rebate to Add Liquidity of \$0.30 per contract for that month instead of paying the Non-Penny Fee for Adding Liquidity. Participants that add NOM Market Maker liquidity in Non-Penny Symbols of above 0.075% of total industry customer equity and ETF option ADV contracts per day in a month will receive a Non-Penny Rebate to Add Liquidity of \$0.40 per contract for that month instead of paying the Non-Penny Fee for Adding Liquidity.

<sup>6</sup> Participants that qualify for either Tier 5 or 6 NOM Market Maker Rebate to Add Liquidity in Penny Symbols will receive a \$0.86 per contract NOM Market Maker Rebate to Add Liquidity in Non-Penny Symbols. Participants that qualify for Tier 7 or higher in the MARS Payment Schedule in Section 2(4) will receive an additional \$0.02 per contract NOM Market Maker Rebate to Add Liquidity in Non-Penny Symbols, in addition to receiving a \$0.86 per contract NOM Market Maker Rebate to Add Liquidity in Non-Penny Symbols. Participants that qualify for note "5" and note "6" incentives will receive the greater of the note "5" or note "6" incentive, but not both.

<sup>7</sup> Participants that: (1) add Customer, Professional, Firm, Non-NOM Market Maker and/or Broker-Dealer liquidity in Penny Symbols and/or Non-Penny Symbols of 1.15% or more of total industry customer equity and ETF option ADV contracts per day in a month will receive an additional \$0.02 per contract Penny Symbol Customer Rebate to Add Liquidity for each transaction which adds liquidity in Penny Symbol in that month; **or** (2) add Customer, Professional, Firm, Non-NOM Market Maker and/or Broker-Dealer liquidity in Penny Symbols and/or Non-Penny Symbols of 1.30% or more of total industry customer equity and ETF option ADV contracts per day in a month will receive an additional \$0.05 per contract Penny Symbol Customer Rebate to Add Liquidity for each transaction which adds liquidity in Penny Symbols in that month; **or** (3) (a) add Customer, Professional, Firm, Non-NOM Market Maker and/or Broker-Dealer liquidity in Penny Symbols and/or Non-Penny Symbols above 0.80% of total industry customer equity and ETF option ADV contracts per day in a month, (b) add Customer, Professional, Firm, Non-NOM Market Maker and/or Broker-Dealer liquidity in Non-Penny Symbols above 0.12% of total industry customer equity and ETF option ADV contracts per day in a month, and (c) execute greater than 0.04% of Consolidated Volume ("CV") via Market-on-Close/Limit-on-Close ("MOC/LOC") volume within The Nasdaq Stock Market Closing Cross within a month will receive an additional \$0.05 per contract Penny Symbol Customer Rebate to Add Liquidity for each transaction which adds liquidity in Penny Symbols in a month. Consolidated Volume shall mean the total consolidated volume reported to all consolidated transaction reporting plans by all exchanges and trade reporting facilities during a month in equity securities, excluding executed orders with a size of less than one round lot. For purposes of calculating Consolidated Volume and the extent of an equity member's trading activity, expressed as a percentage of or ratio to Consolidated Volume, the date of the annual reconstitution of the Russell Investments Indexes shall be excluded from both total Consolidated Volume and the member's trading activity.

<sup>8</sup> Reserved.

<sup>9</sup> NOM Participants that transact in all securities through one or more of its Nasdaq Market Center MPIDs that represent 3.00% or more of Consolidated Volume in the same month on The Nasdaq Stock Market will receive a \$0.50 per contract Rebate to Add Liquidity in Penny Symbols as Customer, a \$0.48 per contract rebate as Professional, a \$1.10 per contract Rebate to Add Liquidity in Non-Penny Symbols as Customer, and a \$0.90 per contract Rebate to Add liquidity in Non-Penny Symbols as Professional. Participants that qualify for this rebate would not be eligible for any other rebates in Tiers 1-6 or other rebate incentives on NOM for Customer and Professional order flow in



<sup>10</sup> NOM Participants that (a) add Customer, Professional, Firm, Non-NOM Market Maker and/or Broker-Dealer liquidity in Penny Symbols and/or Non-Penny Symbols above 1.50% of total industry customer equity and ETF option ADV contracts per day in a month, (b) execute greater than 0.04% of Consolidated Volume ("CV") via Market-on-Close/Limit-on-Close ("MOC/LOC") volume within The Nasdaq Stock Market Closing Cross within a month, and (c) add greater than 1.5 million shares per day of non-displayed volume within The Nasdaq Stock Market within a month will receive a \$0.55 per contract Rebate to Add Liquidity in Penny Symbols as Customer, a \$0.48 per contract Rebate to Add Liquidity in Penny Symbols as Professional, and a \$1.15 per contract Rebate to Add Liquidity in Non-Penny Symbols as Customer, and a \$0.90 per contract Rebate to Add Liquidity in Non-Penny Symbols as Professional. Participants that qualify for this rebate would not be eligible for any other rebates in Tiers 1-6 or other rebate incentives on NOM for Customer and Professional order flow in Options 7, Section 2(1).

<sup>11</sup> Reserved.

<sup>12</sup> A Participant that qualifies for Customer or Professional Penny Symbol Rebate to Add Liquidity Tiers 2, 3, 4, or 5 in a month will receive an additional \$0.10 per contract Non-Penny Symbol Rebate to Add Liquidity for each transaction which adds liquidity in Non-Penny Symbols in that month. A Participant that qualifies for Customer or Professional Penny Symbol Rebate to Add Liquidity Tier 6 in a month will receive an additional \$0.20 per contract Non-Penny Symbol Rebate to Add Liquidity as Customer and an additional \$0.10 per contract Non-Penny Symbol Rebate to Add Liquidity as Professional for such transactions which add liquidity in Non-Penny Symbols in that month.

#### (2) Opening Cross per Options 3, Section 8

All orders executed in the Opening Cross:

Customer orders will receive the Rebate to Add Liquidity during the Exchange's Opening Cross, unless the contra-side is also a Customer. Broker-Dealers, Professionals, Firms, Non-NOM Market Makers and NOM Market Makers will be assessed the Fee for Removing Liquidity during the Exchange's Opening Cross.

(3) Fees for routing contracts to markets other than The Nasdaq Options Market shall be assessed as follows:

**Non-Customer** • \$1.20 per contract to any options exchange.

**Customer** • \$0.23 per contract fee ("Fixed Fee") to any options exchange in addition to the actual transaction fee assessed. If the away market pays a rebate, the Routing Fee will be \$0.13 per contract.

#### (4) Market Access and Routing Subsidy ("MARS")

##### MARS System Eligibility

To qualify for MARS, the Participant's routing system ("System") would be required to: (1) enable the electronic routing of orders to all of the U.S. options exchanges, including NOM; (2) provide current consolidated market data from the U.S. options exchanges; and (3) be capable of interfacing with NOM's API to access current NOM match engine functionality. Further, the Participant's System would also need to cause NOM to be the one of the top three default destination exchanges for (a) individually executed marketable orders if NOM is at the national best bid or offer ("NBBO"), regardless of size or time or (b) orders that establish a new NBBO on NOM's Order Book, but allow any user to manually override NOM as a default destination on an order-by-order basis. Any NOM Participant would be permitted to avail itself of this arrangement, provided that its order routing functionality incorporates the features described above and satisfies NOM that it appears to be robust and reliable. The Participant remains solely responsible for implementing and operating its System.

##### MARS Eligible Contracts

MARS Payment would be made to NOM Participants that have System Eligibility and have routed the requisite number of Eligible Contracts daily in a month ("Average Daily Volume"), which were executed on NOM. For the purpose of qualifying for the MARS Payment, Eligible Contracts may include Firm, Non-NOM Market Maker, Broker-Dealer, or Joint Back Office or "JBO" equity option orders that add liquidity and are electronically delivered and executed. Eligible Contracts do not include Mini Option orders.

##### MARS Payment

NOM Participants that have System Eligibility and have executed the requisite number of Eligible Contracts in a month will be paid the following rebates:

| Tiers | Average Daily Volume ("ADV") | MARS Payment (Penny)  | MARS Payment (Non-Penny) |
|-------|------------------------------|-----------------------|--------------------------|
| 1     | 2,000                        | \$0.11 <sup>* ^</sup> | \$0.24 <sup>^</sup>      |

|   |         |                       |                     |
|---|---------|-----------------------|---------------------|
| 2 | 5,000   | \$0.11 <sup>* ^</sup> | \$0.29 <sup>^</sup> |
| 3 | 10,000  | \$0.11 <sup>* ^</sup> | \$0.39 <sup>^</sup> |
| 4 | 20,000  | \$0.15 <sup>* ^</sup> | \$0.50 <sup>^</sup> |
| 5 | 45,000  | \$0.17 <sup>* ^</sup> | \$0.60 <sup>^</sup> |
| 6 | 75,000  | \$0.20 <sup>^</sup>   | \$0.75 <sup>^</sup> |
| 7 | 100,000 | \$0.20 <sup>^</sup>   | \$0.78 <sup>^</sup> |
| 8 | 125,000 | \$0.20 <sup>^</sup>   | \$0.81 <sup>^</sup> |
| 9 | 150,000 | \$0.21 <sup>^</sup>   | \$0.84 <sup>^</sup> |

The specified MARS Payment will be paid on all executed Eligible Contracts that add liquidity, which are routed to NOM through a participating NOM Participant's System and meet the requisite Eligible Contracts ADV. No payment will be made with respect to orders that are routed to NOM, but not executed

A Participant will not be entitled to receive any other revenue from the Exchange for the use of its System specifically with respect to orders routed to NOM.

<sup>\*</sup> NOM Participants that qualify for Customer and Professional Penny Symbols Rebate to Add Liquidity Tier 6 will receive a \$0.20 per contract rebate in Penny Symbols in lieu of the Penny MARS Payment Tiers 1 - 5 on MARS Eligible Contracts the NOM Participant qualifies for in a given month.

<sup>^</sup> NOM Participants that have total Affiliated Entity or Common Ownership average daily add volume ("ADAV") of 3.00% or more of total industry customer equity and ETF option ADV contracts per day in a month will receive an additional \$0.01 per contract in Penny Symbols and an additional \$0.03 per contract in Non-Penny Symbols, in addition to any MARS Payment tier on MARS Eligible Contracts the NOM Participant qualifies for in a given month.

Adopted Jan. 6, 2012 (SR-NASDAQ-2012-006); amended Jan. 31, 2012 (SR-NASDAQ-2012-022), operative Feb. 1, 2012; amended Feb. 13, 2012 (SR-NASDAQ-2012-027), operative Mar. 1, 2012; amended Feb. 29, 2012 (SR-NASDAQ-2012-033), operative Mar. 1, 2012; amended Mar. 28, 2012 (SR-NASDAQ-2012-037), operative Apr. 2, 2012; amended Mar. 28, 2012 (SR-NASDAQ-2012-046), operative Apr. 2, 2012; amended Apr. 2, 2012 (SR-NASDAQ-2012-048); amended Apr. 11, 2012 (SR-NASDAQ-2012-050); amended May 30, 2012 (SR-NASDAQ-2012-068), operative June 1, 2012; amended June 27, 2012 (SR-NASDAQ-2012-080), operative July 2, 2012; amended June 29, 2012 (SR-NASDAQ-2012-083), operative July 2, 2012; amended Aug. 31, 2012 (SR-NASDAQ-2012-102), operative Sept. 4, 2012; amended Aug. 31, 2012 (SR-NASDAQ-2012-104), operative Sept. 4, 2012; amended Oct. 1, 2012 (SR-NASDAQ-2012-114); amended Oct. 31, 2012 (SR-NASDAQ-2012-125), operative Nov. 1, 2012; ; amended Nov. 1, 2012 (SR-NASDAQ-2012-127), operative Nov. 2, 2012; amended Nov. 30, 2012 (SR-NASDAQ-2012-136), operative Dec. 3, 2012; amended Dec. 31, 2012 (SR-NASDAQ-2012-141), operative Jan. 2, 2013; amended Jan. 2, 2013 (SR-NASDAQ-2013-001); amended Jan. 18, 2013 (SR-NASDAQ-2013-010), operative Feb. 1, 2013; amended Jan. 22, 2013 (SR-NASDAQ-2013-013), operative Feb. 1, 2013; amended Feb. 1, 2013 (SR-NASDAQ-2013-025); amended Feb. 4, 2013 (SR-NASDAQ-2013-027); amended Feb. 12, 2013 (SR-NASDAQ-2013-029); amended Mar. 1, 2013 (SR-NASDAQ-2013-041); amended Mar. 15, 2013 (SR-NASDAQ-2013-049), operative Mar. 18, 2013; amended Mar. 18, 2013 (SR-NASDAQ-2013-051), operative Apr. 1, 2013; amended Apr. 1, 2013 (SR-NASDAQ-2013-062); amended Apr. 9, 2013 (SR-NASDAQ-2013-064), operative May 1, 2013; amended Apr. 30, 2013 (SR-NASDAQ-2013-074), operative May 1, 2013; amended June 27, 2013 (SR-NASDAQ-2013-091), operative July 1, 2013; amended Aug. 5, 2013 (SR-NASDAQ-2013-104); amended Sep. 9, 2013 (SR-NASDAQ-2013-120); amended Sep. 9, 2013 (SR-NASDAQ-2013-117); amended Oct. 28, 2013 (SR-NASDAQ-2013-136), operative Nov. 1, 2013; amended Nov. 13, 2013 (SR-NASDAQ-2013-141); amended Nov. 27, 2013 (SR-NASDAQ-2013-146), operative Dec. 2, 2013; amended Nov. 29, 2013 (SR-NASDAQ-2013-149), operative Dec. 2, 2013; amended Jan. 2, 2014 (SR-NASDAQ-2014-002); amended Jan. 29, 2014 (SR-NASDAQ-2014-013), operative Feb. 3, 2014; amended Feb. 3, 2014 (SR-NASDAQ-2014-016); amended Mar. 3, 2014 (SR-NASDAQ-2014-021); amended Mar. 3, 2014 (SR-NASDAQ-2014-023); amended May 15, 2014 (SR-NASDAQ-2014-055), operative June 2, 2014; amended June 2, 2014 (SR-NASDAQ-2014-062); amended July 30, 2014 (SR-NASDAQ-2014-077), operative Aug. 1, 2014; amended Oct. 31, 2014 (SR-NASDAQ-2014-098), operative Nov. 3, 2014; amended Nov. 10, 2014 (SR-NASDAQ-2014-105), operative Nov. 3, 2014; amended Nov. 20, 2014 (SR-NASDAQ-2014-114), operative Dec. 1, 2014; amended Nov. 18, 2014 (SR-NASDAQ-2014-113), operative Dec. 18, 2014; amended Feb. 27, 2015 (SR-NASDAQ-2015-019),

operative Mar. 2, 2015; amended Apr. 10, 2015 (SR-NASDAQ-2015-037), operative May 1, 2015; amended Apr. 29, 2015 (SR-NASDAQ-2015-047), operative May 1, 2015; amended June 30, 2015 (SR-NASDAQ-2015-070), operative July 1, 2015; amended July 31, 2015 (SR-NASDAQ-2015-090), operative Aug. 3, 2015; amended Sep. 1, 2015 (SR-NASDAQ-2015-102); amended Sep. 1, 2015 (SR-NASDAQ-2015-109), operative Oct. 1, 2015; amended Sep. 29, 2015 (SR-NASDAQ-2015-113), operative Oct. 1, 2015; amended Oct. 22, 2015 (SR-NASDAQ-2015-115), operative Oct. 22, 2015; amended Oct. 23, 2015 (SR-NASDAQ-2015-127), operative Nov. 2, 2015; amended Oct. 27, 2015 (SR-NASDAQ-2015-128), operative Nov. 2, 2015; amended Oct. 28, 2015 (SR-NASDAQ-2015-130), operative Nov. 2, 2015; amended Nov. 2, 2015 (SR-NASDAQ-2015-133); amended Dec. 1, 2015 (SR-NASDAQ-2015-148); amended Dec. 2, 2015 (SR-NASDAQ-2015-149); amended Dec. 15, 2015 (SR-NASDAQ-2015-153), operative Jan. 4, 2016; amended Dec. 17, 2015 (SR-NASDAQ-2015-155), operative Jan. 4, 2016; amended Dec. 30, 2015 (SR-NASDAQ-2015-166), operative Jan. 4, 2016; amended Jan. 11, 2016 (SR-NASDAQ-2016-004); amended Jan. 28, 2016 (SR-NASDAQ-2016-012), operative Feb. 1, 2016; amended Feb. 1, 2016 (SR-NASDAQ-2016-015); amended Apr. 13, 2016 (SR-NASDAQ-2016-055), operative Apr. 1, 2016; amended May 10, 2016 (SR-NASDAQ-2016-070), operative May 2, 2016; amended June 14, 2016 (SR-NASDAQ-2016-089), operative June 1, 2016; amended July 12, 2016 (SR-NASDAQ-2016-100), operative July 1, 2016; amended Aug. 9, 2016 (SR-NASDAQ-2016-113), operative Aug. 1, 2016; amended Oct. 31, 2016 (SR-NASDAQ-2016-149), operative Nov. 1, 2016; amended Nov. 1, 2016 (SR-NASDAQ-2016-152); amended Dec. 1, 2016 (SR-NASDAQ-2016-166); amended Jan. 3, 2017 (SR-NASDAQ-2017-001); amended June 30, 2017 (SR-NASDAQ-2017-067), operative July 3, 2017; amended Aug. 1, 2017 (SR-NASDAQ-2017-079); amended Aug. 1, 2017 (SR-NASDAQ-2017-080); amended Aug. 16, 2017 (SR-NASDAQ-2017-083), operative Sept. 1, 2017; amended Oct. 18, 2017 (SR-NASDAQ-2017-111); Oct. 31, 2017 (SR-NASDAQ-2017-116); amended Dec. 1, 2017 (SR-NASDAQ-2017-127); amended Mar. 1, 2018 (SR-NASDAQ-2018-018); amended Mar. 13, 2018 (SR-NASDAQ-2018-019); amended July 31, 2018 (SR-NASDAQ-2018-063), operative Aug. 1, 2018; amended Nov. 19, 2018 (SR-NASDAQ-2018-098); amended Dec. 3, 2018 (SR-NASDAQ-2018-101); amended Dec. 21, 2018 (SR-NASDAQ-2018-108); amended Jan. 31, 2019 (SR-NASDAQ-2019-003); amended Feb. 28, 2019 (SR-NASDAQ-2019-011), operative Mar. 1, 2019; amended Apr. 1, 2019 (SR-NASDAQ-2019-025); amended Apr. 10, 2019 (SR-NASDAQ-2019-029); amended May 2, 2019 (SR-NASDAQ-2019-037); amended Sept. 27, 2019 (SR-NASDAQ-2019-084), operative Oct. 1, 2019; amended Jan. 29, 2020 (SR-NASDAQ-2020-006); amended Aug. 3, 2020 (SR-NASDAQ-2020-047); amended Aug. 13, 2020 (SR-NASDAQ-2020-052); amended Dec. 1, 2020 (SR-NASDAQ-2020-084); amended Apr. 1, 2021 (SR-NASDAQ-2021-016); amended Apr. 9, 2021 (SR-NASDAQ-2021-019); amended Apr. 13, 2021 (SR-NASDAQ-2021-021); amended Sep. 1, 2021 (SR-NASDAQ-2021-069); amended Jan. 3, 2022 (SR-NASDAQ-2022-001); amended Jul. 1, 2022 (SR-NASDAQ-2022-040); amended Nov. 1, 2022 (SR-NASDAQ-2022-061); amended Nov. 10, 2022 (SR-NASDAQ-2022-064); amended Dec. 14, 2022 (SR-NASDAQ-2022-078); amended May 1, 2023 (SR-NASDAQ-2023-011); amended Sep. 1, 2023 (SR-NASDAQ-2023-033); amended Sep. 13, 2023 (SR-NASDAQ-2023-037); amended Sep. 29, 2023 (SR-NASDAQ-2023-040), operative Oct. 2, 2023; amended Nov. 1, 2023 (SR-NASDAQ-2023-044); amended Jul. 1, 2024 (SR-NASDAQ-2024-033); amended Jan. 31, 2025 (SR-NASDAQ-2025-010), operative Feb. 3, 2025; amended Feb. 10, 2025 (SR-NASDAQ-2025-014); amended Jun. 2, 2025 (SR-NASDAQ-2025-044); amended Jun. 16, 2025 (SR-NASDAQ-2025-045); amended Aug. 1, 2025 (SR-NASDAQ-2025-058); amended Dec. 1, 2025 (SR-NASDAQ-2025-096); amended Nov. 25, 2025 (SR-NASDAQ-2025-093), operative Feb. 2, 2026; amended Jan. 30, 2026 (SR-NASDAQ-2026-006), operative Feb. 2, 2026; amended Jul. 31, 2026 (SR-NASDAQ-2026-063), operative Aug. 3, 2026.

### Section 3 Nasdaq Options Market - Ports and Other Services

Changes have been approved that are not yet operative. For more information see the [attached document](#).

#### Pre-Production Ports

*Port Fees in Options 7, Section 3 will not be assessed for any pre-production ports acquired in anticipation of a technology migration.*

#### Production Ports

*NOM will not assess the below FIX Port, SQF Port, SQF Purge Port, QUO Port, CTI Port, ITTO Port and BONO Port fees for any new FIX Ports, SQF Ports, SQF Purge Ports, OTTO Ports (formerly QUO Ports), CTI Ports, Depth of Market Feed (formerly ITTO Ports) and Top of Market Feed Ports (formerly BONO Ports) which are duplicative of legacy FIX Ports, SQF Ports, SQF Purge Ports, QUO Ports, CTI Ports, ITTO Ports and BONO Ports as of July 1, 2026, acquired as part of the migration from July 1, 2026 through August 31, 2026 ("Transition Period"). NOM will continue to assess the below FIX Port, SQF Port, SQF Purge Port, QUO Ports, CTI Port ITTO Port and BONO Port fees for legacy FIX Ports, SQF Ports, SQF Purge Ports, QUO Ports, CTI Ports, ITTO Ports and BONO Ports during the Transition Period including new FIX Ports, SQF Ports, SQF Purge Ports, OTTO Ports (formerly QUO Ports), CTI Ports, Depth of Market Feed (formerly ITTO Ports) and Top of Market Feed Ports (formerly BONO Ports).*

*NOM will sunset legacy SQF Ports, SQF Purge Ports, QUO Ports, CTI Ports, ITTO Ports and BONO Ports on September 1, 2026.*

*As of September 1, 2026, NOM will assess the below FIX Ports fee for all new and legacy FIX Ports to which they subscribe. NOM will sunset legacy FIX Ports on November 30, 2026.*

The below charges are assessed by Nasdaq for connectivity to services and The Nasdaq Options Market.

A port is a logical connection or session that enables a market participant to send inbound messages and/or receive outbound messages from the Exchange using various communication protocols. Fees are prorated for the first month of service under this section. Upon cancellation, Participants are required to pay for service for the remainder of the month, regardless of whether it is the first month of service.

An account number shall mean a number assigned to a Participant. Participants may have more than one account number.

(i) The following order and quote protocols are available on NOM:

|                         |                                               |
|-------------------------|-----------------------------------------------|
| <b>(1) FIX Port Fee</b> | \$650 per port, per month, per account number |
|-------------------------|-----------------------------------------------|



**(2) SQF Port Fee** per port, per month

A Market Maker may not subscribe to more than 250 SQF Ports per month.

**(3) SQF Purge Port Fee** per port, per month

**SQF Port Fee and the SQF Purge Port Fee are aggregated for the below incremental tiers as follows:**

| Number of Ports                        | Monthly Fee Per Port |
|----------------------------------------|----------------------|
| First 5 ports (1-5)                    | \$1,620 per port     |
| Next 15 ports (6-20)                   | \$1,080 per port     |
| All ports over 20 ports (21 and above) | \$540 per port       |

SQF Port and SQF Purge Fees will be discounted, on a monthly basis, by the percentage discount in the below table provided a market participant has transacted the requisite amount of Total National Volume in the prior month. The percentage of Total National Volume is calculated by taking the total Market Maker Penny Symbol and Market Maker Non-Penny Symbol volume (excluding index options) executed on the Exchange in the prior month and attributing a multiple of five times to that Non-Penny Symbol volume (numerator) and dividing that by Market Maker volume ("M" capacity at The Options Clearing Corporation ("OCC")) in multiply listed options across all options exchanges (denominator or Total National Volume).

| Tier | Percentage of Total National Volume                | Percentage SQF Port and SQF Purge Port Discount |
|------|----------------------------------------------------|-------------------------------------------------|
| 1    | less than 0.10%                                    | 0%                                              |
| 2    | greater than or equal to 0.10% and less than 0.25% | 10%                                             |
| 3    | greater than or equal to 0.25% and less than 0.40% | 30%                                             |
| 4    | greater than or equal to 0.40%                     | 50%                                             |

For example, a Market Maker that executed 3,000,000 in Penny Volume and 200,000 in Non-Penny Volume in a given month on the Exchange, where the Total National Volume was 1,000,000,000, would qualify for a discount of 50% on their SQF Port and SQF Purge Port fees ( $(200,000 \times 5 = 1,000,000) + 3,000,000 = 4,000,000$  which is 0.40% of 1,000,000,000).

**(4) OTTO Port Fee** \$750 per port, per month, per account number

(ii) The following order and execution information is available to Participants.

**(1) CTI Port Fee** \$650 per port, per month

**(2) FIX DROP Port Fee** \$650 per port, per month

(iii) The following data port fees apply in connection with data subscriptions pursuant to Nasdaq Rules at Options 7, Section 4. The below port fees do not apply if the subscription is delivered via multicast. These ports are available to non-NOM Participants and NOM Participants.

**(1) Depth of Market Feed Port Fee** \$650 per port, per month

**(2) Top of Market Feed Port Fee** \$650 per port, per month

(iv) Other ports:

**Disaster Recovery Port Fee for ports in subsections (i) - (iii)** \$0 per port, per month

**Nasdaq Testing Facility Port Fee<sup>1</sup>** \$0 per port, per month

<sup>1</sup>The Nasdaq Testing Facility Port Fee is applicable to all ports within this Section 3.

Adopted Jan. 6, 2012 (SR-NASDAQ-2012-006); amended Apr. 18, 2012 (SR-NASDAQ-2012-052), operative May 1, 2012; amended July 24, 2012 (SR-NASDAQ-2012-086), operative Sept. 3, 2012; amended Dec. 12, 2012 (SR-NASDAQ-2012-139), operative Jan. 2, 2013; amended Feb. 21, 2013 (SR-NASDAQ-2013-034); amended Sep. 19, 2013 (SR-NASDAQ-2013-124), operative Oct. 1, 2013; amended Dec. 12, 2014 (SR-NASDAQ-2014-122), operative Jan. 2, 2015; amended Mar. 25, 2015 (SR-NASDAQ-2015-027), operative Apr. 1, 2015; amended Aug. 13, 2015 (SR-NASDAQ-2015-101), operative Aug. 4, 2015; amended May 4, 2016 (SR-NASDAQ-2016-033); amended Oct. 3, 2016 (SR-NASDAQ-2016-133); amended Nov. 30, 2016 (SR-NASDAQ-2016-164), operative Dec. 1, 2016; amended Nov. 28, 2016 (SR-NASDAQ-2016-163); amended Dec. 9, 2016 (SR-NASDAQ-2016-170); amended Dec. 16, 2016 (SR-NASDAQ-2016-178); amended Feb. 21, 2017 (SR-NASDAQ-2017-022); amended Oct. 18, 2017 (SR-NASDAQ-2017-111); amended Apr. 27, 2018 (SR-NASDAQ-2018-036); amended May 30, 2018 (SR-NASDAQ-2018-040); amended Nov. 7, 2018 (SR-NASDAQ-2018-087); amended Nov. 9, 2018 (SR-NASDAQ-2018-091); amended Nov. 19, 2018 (SR-NASDAQ-2018-098); amended Nov. 26, 2018 (SR-NASDAQ-2018-097); amended July 15, 2019 (SR-NASDAQ-2019-056); amended Aug. 22, 2019 (SR-NASDAQ-2019-067), operative Sept. 3, 2019; amended Dec. 1, 2020 (SR-NASDAQ-2020-084); amended Aug. 12, 2022 (SR-NASDAQ-2022-049), operative Sep. 1, 2022; amended Sep. 1, 2022 (SR-NASDAQ-2022-050); amended Nov. 28, 2023 (SR-NASDAQ-2023-050), operative Dec. 1, 2023; amended Dec. 5, 2023 (SR-NASDAQ-2023-054); amended Jan. 16, 2024 (SR-NASDAQ-2024-003); amended Mar. 7, 2024 (SR-NASDAQ-2024-012); amended May 1, 2024 (SR-NASDAQ-2024-021); amended Jun. 12, 2024 (SR-NASDAQ-2024-025); amended Jul. 1, 2024 (SR-NASDAQ-2024-036); amended Dec. 20, 2024 (SR-NASDAQ-2024-087), operative Jan. 1, 2025; amended Jul. 22, 2025 (SR-NASDAQ-2025-055), operative Aug. 1, 2025; amended Dec. 16, 2025 (SR-NASDAQ-2025-107); amended Apr. 28, 2026 (SR-NASDAQ-2026-041); amended April 16, 2026 (SR-NASDAQ-2026-034), operative Jul. 27, 2026; amended May 6, 2026 (SR-NASDAQ-2026-039), operative Jul. 27, 2026.

#### Section 4 Nasdaq Options Market Data Distributor Fees

Changes have been approved that are not yet operative. For more information see the [attached document](#).

(a) The charges to be paid by recipients of Top of Market Feed and Depth of Market Feed as well as NOTO and Hardware-Based delivery of NOM Depth data shall be:

|                      | Monthly Internal Distributor Fee                                            | Monthly External Distributor Fee                                            |
|----------------------|-----------------------------------------------------------------------------|-----------------------------------------------------------------------------|
| Top of Market Feed   | \$1,566 (op. 1/1/25);<br>\$1,618 (op. 1/1/26);<br>\$1,648 (op. 1/1/27)/firm | \$2,089 (op. 1/1/25);<br>\$2,158 (op. 1/1/26);<br>\$2,197 (op. 1/1/27)/firm |
| Depth of Market Feed | \$1,566 (op. 1/1/25);<br>\$1,618 (op. 1/1/26);<br>\$1,648 (op. 1/1/27)/firm | \$2,089 (op. 1/1/25);<br>\$2,158 (op. 1/1/26);<br>\$2,197 (op. 1/1/27)/firm |

#### Non-Display Enterprise License Fee

A \$10,530 (op. 1/1/25); \$10,942 (op. 1/1/26); \$11,177 (op. 1/1/27) per month enterprise license fee permits distribution of Top of Market Feed and Depth of Market Feed as provided in Section 4(c). This fee is in addition to the Monthly Internal and External Distributor Fees set forth above.

One distributor fee allows access to either the Top of Market Feed or the Depth of Market Feed.

|                                             | Monthly Internal Per User Fee                                                         | Monthly External Per User Fee                                                                                      |
|---------------------------------------------|---------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|
| Top of Market Feed and Depth of Market Feed | \$42.10 (op. 1/1/25);<br>\$43.75 (op. 1/1/26); \$44.70 (op. 1/1/27)/professional user | \$42.10 (op. 1/1/25);<br>\$43.75 (op. 1/1/26);<br>\$44.70 (op. 1/1/27)/professional user \$1/non-professional user |

|                                       | Monthly End of Day Product Subscriber | Monthly Intra-Day Product Subscriber |
|---------------------------------------|---------------------------------------|--------------------------------------|
| Nasdaq Options Trade Outline ("NOTO") | \$575                                 | \$2,000                              |

## NOTO Historical Data

| Account Type                                                 | Fee                                   |
|--------------------------------------------------------------|---------------------------------------|
| Historical Data for Current End of Day Product Distributors: | \$3,000 for the most recent 36 months |
| Historical Data for Current Intra-Day Product Distributors:  | \$6,000 for the most recent 36 months |

The most recent 36 months is measured based on the date of purchase of the 36 months of data by a Current Distributor.

A "Current Distributor" is any firm that purchases either the End of Day Product for the current month, or the Intra-Day Product for the current month, in the same month that the 36 months of historical End of Day or Intra-Day data is ordered.

Ad-hoc requests for historical data shall be \$575 per month for End of Day data and \$2,000 per month for Intra-Day data. Historical information is available starting in November 2011.

## External Distribution

|                                                            |                   |
|------------------------------------------------------------|-------------------|
| Unlimited External Distribution of Derived Data from NOTO: | \$4,000 per month |
|------------------------------------------------------------|-------------------|

Fees for external distribution of Derived Data from NOTO are in addition to fees for the End of Day product or the Intra-Day product, or both, as applicable.

"Derived Data" is any information generated in whole or in part from Exchange Information such that the information generated cannot be reverse engineered to recreate Exchange Information, or be used to create other data that is recognizable as a reasonable substitute for such Exchange Information.

"Exchange Information" is any data or information that has been collected, validated, processed and/or recorded by the Exchange and made available for transmission relating to: (i) eligible securities or other financial instruments, markets, products, vehicles, indicators or devices; (ii) activities of the Exchange; or (iii) other information or data from the Exchange. Information includes, but is not limited to, any element of information used or processed in such a way that Exchange Information or a substitute for such Information can be identified, recalculated or re-engineered from the processed information.

Hardware-Based Delivery of NOM Depth data - the charges to be paid by Distributors for processing NOM Depth data sourced from a Nasdaq hardware-based market data format shall be:

| Hardware-Based Delivery of NOM Depth data | Monthly Fee                                                                               |
|-------------------------------------------|-------------------------------------------------------------------------------------------|
| Internal Only Distributor                 | \$10,530 (op. 1/1/25);<br>\$10,942 (op. 1/1/26);<br>\$11,177 (op. 1/1/27) Per Distributor |
| External Only Distributor                 | \$1,000 Per Distributor                                                                   |

|                                   |                                                                                                                      |
|-----------------------------------|----------------------------------------------------------------------------------------------------------------------|
| Internal and External Distributor | \$11,530 (op. 1/1/25);<br>\$11,942 (op. 1/1/26);<br>\$12,177 (op. 1/1/27) Per Distributor                            |
| Managed Data Solution Distributor | \$1,000 = 1 Subscriber<br>\$1,250 = 2 Subscribers<br>\$1,500 = 3 Subscribers<br>\$250 for each additional Subscriber |

(b) A "distributor" of Nasdaq options market data is any entity that receives a feed or data file of Nasdaq data directly from Nasdaq or indirectly through another entity and then distributes the data either internally (within that entity) or externally (outside that entity). All distributors shall execute a Nasdaq distributor agreement. Nasdaq itself is a vendor of its data feed(s) and has executed a Nasdaq distributor agreement and pays the distributor charge.

(c) An "enterprise license" entitles a distributor to provide Top of Market Feed or Depth of Market Feed market data pursuant to this section to an unlimited number of non-display devices within the firm without any per user charge.

(d) Top of Market Feed is a data feed that provides The Nasdaq Options Market ("NOM") Best Bid and Offer and last sale information for trades executed on NOM.

(e) Depth of Market Feed is a data feed that provides quotation information for individual orders on the NOM book, last sale information for trades executed on NOM, and Order Imbalance Information as set forth in NOM Rules Options 3, Section 23(a)(1).

(1) "Hardware-Based Delivery" means that a distributor is processing data sourced from a Nasdaq hardware coded market data format such as NOM Depth of Market Feed FPGA.

(2) Distributors of NOM Depth data also are subject to the market data fees as set forth in this section.

(f) The term "non-professional" shall have the same meaning as in Nasdaq Equity 7, Section 111(b)(2).

(g) 30-Day Free Trial Offer. Nasdaq shall offer all new individual (non-firm) users (subscribers) and potential new individual users a 30-day waiver of the user fees for Nasdaq options market data pursuant to this section. This fee waiver period shall be applied on a rolling basis, determined by the date on which a new individual user or potential individual user is first entitled by a distributor to receive access to Nasdaq options market data. A distributor may only provide this waiver to a specific individual user once.

Adopted Jan. 6, 2012 (SR-NASDAQ-2012-006); amended Nov. 28, 2014 (SR-NASDAQ-2014-119), operative Jan. 1, 2015; amended Apr. 7, 2015 (SR-NASDAQ-2015-035); amended Dec. 2, 2016 (SR-NASDAQ-2016-167), operative Jan. 1, 2017; amended Oct. 18, 2017 (SR-NASDAQ-2017-111); amended Nov. 19, 2018 (SR-NASDAQ-2018-098); amended Dec. 6, 2019 (SR-NASDAQ-2019-098); amended Jul. 1, 2024 (SR-NASDAQ-2024-034); amended Jul. 15, 2024 (SR-NASDAQ-2024-040); amended Jul. 29, 2024 (SR-NASDAQ-2024-043); amended Sep. 6, 2024 (SR-NASDAQ-2024-055); amended Dec. 24, 2024 (SR-NASDAQ-2024-086), operative Jan. 1, 2025; amended April 16, 2026 (SR-NASDAQ-2026-034), operative Jul. 27, 2026.

## Section 5 Options Regulatory Fee

### Effective January 2, 2026, the ORF will be \$0.0006 per contract side.

The Options Regulatory Fee ("ORF") is assessed by NOM to each NOM Participant for options transactions cleared by OCC in the Customer range where: (1) the execution occurs on NOM or (2) the execution occurs on another exchange and is cleared by a NOM Participant. The ORF is collected by OCC on behalf of NOM from (1) NOM clearing members for all Customer transactions they clear or (2) non-members for all Customer transactions they clear that were executed on NOM. NOM uses reports from OCC when assessing and collecting ORF. The Exchange will notify Participants via an Options Trader Alert of any change in the amount of the fee at least 30 calendar days prior to the effective date of the change.

NOM Participants who do not transact an equities business on The Nasdaq Stock Market LLC in a calendar year will receive a refund of the fees specified in Equity 7, Section 30(b) upon written notification to the Exchange along with documentation evidencing that no equities business was conducted on The Nasdaq Stock Market for that calendar year. The Exchange will accept refund requests up until sixty (60) days after the end of the calendar year.

### Effective July 1, 2026, the ORF is \$0.0200 per contract side

The Options Regulatory Fee ("ORF") is assessed by NOM for options transactions cleared by The Options Clearing Corporation ("OCC") in the customer range for executions that occur on NOM. The ORF is collected by the OCC on behalf of the Exchange from either (1) a Participant that was the clearing firm for the transaction or (2) a non-Participant that was the clearing firm where a Participant was the executing firm for the transaction. The Exchange will notify Participants via an Options Trader Alert of any change in the amount of the fee at least 30 calendar days prior to the effective date of the change.

Adopted Jan. 6, 2012 (SR-NASDAQ-2012-006); amended Feb. 11, 2014 (SR-NASDAQ-2014-018), operative Mar. 3, 2014; amended Jan. 8, 2016 (SR-NASDAQ-2016-003), operative Feb. 1, 2016; amended July 6, 2016 (SR-NASDAQ-2016-096), operative Aug. 1, 2016; amended July 26, 2017 (SR-NASDAQ-2017-068), operative Aug. 1, 2017; amended Sept. 25, 2017 (SR-NASDAQ-2017-099); amended Oct. 18, 2017

(SR-NASDAQ-2017-111); amended July 27, 2018 (SR-NASDAQ-2018-062), operative Aug. 1, 2018; amended Nov. 19, 2018 (SR-NASDAQ-2018-098); amended Feb. 1, 2019 (SR-NASDAQ-2019-006); amended Aug. 3, 2020 (SR-NASDAQ-2020-047); amended Aug. 13, 2020 (SR-NASDAQ-2020-052); amended August 5, 2021 (SR-NASDAQ-2021-057), operative October 1, 2021; amended Jan. 20, 2022 (SR-NASDAQ-2022-007), operative Feb. 1, 2022; amended Oct. 15, 2024 (SR-NASDAQ-2024-058), operative Nov. 1, 2024 through November 26, 2024; amended Nov. 27, 2024 (SR-NASDAQ-2024-078), operative Nov. 27, 2024 and Jan. 1, 2025; amended Jan. 28, 2025 (SR-NASDAQ-2025-009); amended Apr. 30, 2025 (SR-NASDAQ-2025-035), operative May 1, 2025; amended Jul. 17, 2025 (SR-NASDAQ-2025-054), operative Jan. 2, 2026; amended Jul. 1, 2025 (SR-NASDAQ-2025-050), operative Aug. 1, 2025; amended Sep. 5, 2025 (SR-NASDAQ-2025-070), operative Oct. 1, 2025; amended Dec. 19, 2025 (SR-NASDAQ-2025-108), operative Jan. 2, 2026; amended Jun. 5, 2026 (SR-NASDAQ-2026-052), operative Jul. 1, 2026.

## **Section 6 Nasdaq Options Maintenance Tool**

The Nasdaq Options Maintenance Tool will be available to each user at no cost until October 31, 2008, and for a subscription fee of \$200 per month, per user thereafter.

Adopted Jan. 6, 2012 (SR-NASDAQ-2012-006); amended Oct. 18, 2017 (SR-NASDAQ-2017-111); amended Nov. 19, 2018 (SR-NASDAQ-2018-098).

## **Section 7 Nasdaq Options Fee Disputes**

(a) All fee disputes concerning fees which are billed by the Exchange must be submitted to the Exchange in writing and must be accompanied by supporting documentation.

(b) All fee disputes must be submitted no later than sixty (60) days after receipt of a billing invoice.

(c) This Section applies to the following Nasdaq Options Market fees:

(1) Section 2 "Nasdaq Options Market - Fees";

(2) Section 3 "Nasdaq Options Market - Ports and other Services", with the exception of the TradeInfo Fee; and

(3) Section 5 "Nasdaq Options Regulatory Fee".

Adopted Jan. 6, 2012 (SR-NASDAQ-2012-006); amended Nov. 28, 2016 (SR-NASDAQ-2016-163); amended Oct. 18, 2017 (SR-NASDAQ-2017-111); amended Nov. 19, 2018 (SR-NASDAQ-2018-098).

## **Section 8 Sales Fee - Options**

A Sales Fee is assessed by Nasdaq to each member for sales of securities through Nasdaq transaction execution systems in the following circumstances:

(a) When a sale in option securities occurs with respect to which Nasdaq is obligated to pay a fee to the SEC under Section 31 of the Act;

(b) When a sell order in option securities is routed for execution at a market other than the Nasdaq Options Market, resulting in a covered sale on that market and an obligation of the routing facility of Nasdaq to pay the related sales fee of that market;

The Sales Fee is collected indirectly from members through their clearing firms by a designated clearing agency, as defined by the Act, on behalf of Nasdaq. The amount of the Sales Fee is equal to (i) the Section 31 fee rate multiplied by (ii) the member's aggregate dollar amount of covered sales resulting from transactions through Nasdaq transaction execution systems during any computational period.

Adopted Jan. 6, 2012 (SR-NASDAQ-2012-006); amended Nov. 19, 2018 (SR-NASDAQ-2018-098).

## **Section 9 Account Number Fee - Options**

NOM Participants will be assessed an Account Number Fee of \$50 per account, per month. An account number shall mean a number assigned to a Participant. Participants may have more than one account number.

Adopted Apr. 18, 2012 (SR-NASDAQ-2012-052), operative May 1, 2012; amended Nov. 7, 2018 (SR-NASDAQ-2018-087); amended Nov. 9, 2018 (SR-NASDAQ-2018-091); amended Nov. 19, 2018 (SR-NASDAQ-2018-098).

## **Section 10 Participant Fee - Options**

NOM Participants will be subject to a Participant Fee of \$1,000 per month.

Adopted Dec. 12, 2012 (SR-NASDAQ-2012-139), operative Jan. 2, 2013; amended Dec. 17, 2015 (SR-NASDAQ-2015-154), operative Jan. 4, 2016; amended Nov. 19, 2018 (SR-NASDAQ-2018-098).

## **Section 11 Managed Data Solutions**

(a) The charges to be paid by Distributors and Subscribers of Managed Data Solutions products for Non-Display Usage containing BONO



or ITTO shall be:

**Fee schedule for Managed Data Solutions for Non-Display Usage — ITTO**

**Price**

|                                                                                                                                           |                          |
|-------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|
| Managed Data Solution Administration Fee<br>(for the right to offer Managed Data Solutions for Non-Display Usage to client organizations) | \$500/mo Per Distributor |
|-------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|

|                                          |                         |
|------------------------------------------|-------------------------|
| NOM Managed Data Solution Subscriber Fee | \$125/mo Per Subscriber |
|------------------------------------------|-------------------------|

**Fee schedule for Managed Data Solutions for Non-Display Usage — BONO**

**Price**

|                                                                                                                                           |                          |
|-------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|
| Managed Data Solution Administration Fee<br>(for the right to offer Managed Data Solutions for Non-Display Usage to client organizations) | \$500/mo Per Distributor |
|-------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|

|                                          |                         |
|------------------------------------------|-------------------------|
| NOM Managed Data Solution Subscriber Fee | \$125/mo Per Subscriber |
|------------------------------------------|-------------------------|

(b) "Distributor" shall mean the same as in NOM Options 7, Section 4(b).

(c) "Subscriber" shall mean a device or computer terminal or an automated service which is entitled to receive Information.

Adopted Mar. 21, 2014 (SR-NASDAQ-2014-029), operative Apr. 1, 2014; amended Nov. 19, 2018 (SR-NASDAQ-2018-098).

**Section 12 Access and Redistribution Fee**

(a) Definitions: For purposes of this Section 12:

(1) The term "Equipment Configuration" shall mean any line, circuit, router package, or other technical configuration used to provide a connection to the Exchange market data feeds.

(2) The term "Extranet Provider" shall mean any entity that has signed the Nasdaq Extranet Connection Agreement and that establishes a telecommunications connection in the Exchange's co-location facility.

(3) The term "Distributor" shall have the meaning set forth in Equity 7, Section 119(c).

(b) Extranet Providers that establish a connection with the Exchange to offer direct access connectivity to market data feeds shall be assessed a monthly access and redistribution fee of \$1,000 per Equipment Configuration. If an Extranet Provider uses multiple Equipment Configurations to provide Exchange market data feeds to recipients, the access and redistribution fee shall apply to each such Equipment Configuration. Extranet Providers that use the same Equipment Configuration for the receipt of equities and options Exchange market data feeds will be assessed a single fee for that Equipment Configuration.

(c) Distributors (other than Extranet Providers) that utilize a Direct Circuit Connection to the Exchange pursuant to General 8, Section 2 (a) to receive Exchange market data feeds shall be assessed a monthly access and redistribution fee of \$1,000 per Direct Circuit Connection. If a Distributor (other than an Extranet Provider) uses multiple Direct Circuit Connections to receive Exchange market data feeds, the monthly fee shall apply to each. Distributors that use the same Direct Circuit Connection for the receipt of equities and options Exchange market data feeds will be assessed a single fee for that Direct Circuit Connection.

(d) The access and redistribution fees set forth above will not be charged for connectivity to market data feeds containing only consolidated data. For purposes of this section, consolidated data includes data disseminated by the Securities Information Processor for the Options Price Regulatory Authority.

Adopted Jan. 2, 2015 (SR-NASDAQ-2015-003). Amended Sep. 29, 2017 (SR-NASDAQ-2017-104); amended Oct. 2, 2017 (SR-NASDAQ-2017-106); amended Oct. 12, 2017 (SR-NASDAQ-2017-109); amended Oct. 25, 2017 (SR-NASDAQ-2017-114); amended June 5, 2018 (SR-NASDAQ-2018-045); amended Nov. 19, 2018 (SR-NASDAQ-2018-098).

### Section 13 Testing Facilities

The Exchange operates a test environment in Carteret, New Jersey. References to the "Testing Facility" refers to this test environment.

(1) Subscribers to the Testing Facility shall pay a fee of \$1,100 per hand-off, per month for connection to the Testing Facility. The hand-off fee includes either a 1Gb or 10Gb switch port and a cross connect to the Testing Facility. Subscribers shall also pay a one-time installation fee of \$1,100 per hand-off.

(2) Subscribers may access the Testing Facility at no cost through a VPN for site-to-site limited order routing capability only.

The connectivity provided under this section also provides connectivity to the other test environments of Nasdaq PHLX LLC and Nasdaq BX, Inc. Additionally, the connectivity may be utilized for either equities or options testing.

Adopted Oct. 16, 2015 (SR-NASDAQ-2015-117), operative Oct. 26, 2015; amended Oct. 18, 2017 (SR-NASDAQ-2017-111); amended Nov. 19, 2018 (SR-NASDAQ-2018-098); amended Apr. 2, 2026 (SR-NASDAQ-2026-027); amended Apr. 10, 2026 (SR-NASDAQ-2026-031).